

26STCV10596 26STCV10596

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV10596 Hearing Date: July 13, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV10596

JOSE

HERRERA-ALEJO vs BARRET BUSINESS SERVICES, INC., A WASHINGTON CORPORATION, et al.

July

13, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT COOK EVENT SERVICES, INC. dba BAKER PARTY RENTALS' MOTION TO COMPEL ARBITRATION AND TO STAY PROCEEDINGS.

RULING:

The Court denies the Motion.

The Court sustains all
evidentiary objections of Plaintiff filed on June 26, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On April 1, 2026, (Plaintiff) filed a Complaint against (Defendant), listing Causes of Action for:

1.

ASSAULT;

2.

BATTERY;

3.

VIOLATION OF CIVIL CODE §52.1;

4.

RETALIATION AND/OR WRONGFUL TERMINATION IN VIOLATION OF LABOR CODE §1102.5;

5.

RETALIATION AND/OR WRONGFUL TERMINATION IN VIOLATION OF LABOR CODE §6310;

6.

WRONGFUL TERMINATION VIOLATING PUBLIC POLICY;

7.

NEGLIGENT HIRING, SUPERVISION, AND/OR RETENTION; AND;

8.

DEFAMATION.

Plaintiff alleges that wrongfully
terminated Plaintiff's employment for complaining about a violent coworker's

assault and battery and an unsafe work environment.

On June 4, 2026, COOK

EVENT SERVICES, INC. dba BAKER PARTY RENTALS (Defendant) filed the Motion to Compel Arbitration, on grounds including that Plaintiff signed an Arbitration Agreement on paper, translated into Spanish, and no unconscionability exists as class action waivers are valid.

Plaintiff opposes, based upon counterarguments such as that he filed a Declaration denying signing or being presented with the Arbitration Agreement, and conveying that he cannot read Spanish or English. Alternatively, Plaintiff asserts unconscionability based upon missing documentation and a class action waiver.

II.

LEGAL STANDARD

Parties

petitioning to compel arbitration have the burden to prove the existence of a valid arbitration agreement by a preponderance of evidence, and parties opposing have the burden to prove by a preponderance of the evidence any fact necessary to a defense. (Gonzalez v. Nowhere Beverly Hills LLC (2024) 107 Cal.App.5th 111, 121; Doss v. Tesla, Inc. (2026) 121 Cal.App.5th 81, 89.)

Parties seeking to compel

arbitration meet their initial burden simply by reciting the terms of the governing provision, or by attaching a copy of the provisions, unless there is a dispute over authenticity that is beyond merely contesting the preliminary showing. (Sprunk v. Prisma LLC (2017) 14 Cal.App.5th 785, 793. See also Iyere v. Wise Auto Grp. (2023) 87 Cal.App.5th 747, 758 [opposing party needs to create a factual dispute as to the signature's authenticity or that a contract was formed.])

The failure to read an

agreement, because of inability to read, or an inability to understand English, are not cognizable grounds to avoid contracts, because parties are expected to have others read or explain the contracts to them. (Randas v. YMCA of Metropolitan Los Angeles (1993) 17 Cal.App.4th 158, 163.) Limited English fluency and education, as to terms printed in English, adequately showed procedural unconscionability. (See Orcilla v. Big Sur, Inc. (2016) 244

Cal.App.4th 982, 997.) Employers

failing to translate arbitration

provisions for employees, who could not read English, constituted oppression,

surprise and procedural unconscionability. (See *Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th

74, 85 [“What elevates this case to a high degree of procedural

unconscionability,... The ... companies hid the enforceability clause and the

entire confidentiality subagreement by failing to translate that portion of the

agreement into Spanish.”].)

“[I]f substantial

evidence supports the trial court's determination that a valid agreement to

arbitrate exists, an appellate court will affirm that determination.” (*Banner Ent., Inc. v. Superior Court*

(1998) 62 Cal.App.4th 348, 357. Accord,

Zavala v. Scott Bros. Dairy,

Inc. (2006) 143 Cal.App.4th 585, 589-590.) Findings of unconscionability as

to arbitration provisions are reviewed de novo, where based on declarations

raising no meaningful disputes, and otherwise are reviewed for substantial

evidence. (*Samaniego v. Empire Today LLC*

(2012) 205 Cal.App.4th 1138, 1144.)

If a court has ordered

arbitration, then it shall stay the pending action until an arbitration is had

in accordance with the order to arbitrate, or another earlier time, and the

stay may be with respect to an issue that is severable. (Code Civ. Proc., §

1281.4; *Mattson Tech., Inc. v. Applied Materials, Inc.* (2023) 96

Cal.App.5th 1149, 1161; *Twentieth Century*

Fox Film Corp. v. Superior Court (2000) 79 Cal.App.4th 188, 192; *Heritage Provider Network, Inc. v. Superior*

Court (2008) 158 Cal.App.4th 1146, 1152, 1154, fn. 12.)

III.

ANALYSIS

According to Defendant, on

April 26, 2023, Plaintiff executed an arbitration agreement. (Lee Previant Declaration,

filed 6/4/26, ¶ 2, Exhibit A.) Further, Defendant asserts that the class action

waiver is enforceable and not unconscionable, where the Complaint contains no

PAGA claim.

Plaintiff maintains that evidence

with the Motion is objectionable, Defendant did not provide the arbitration

agreement or explain it, and Plaintiff cannot read English or Spanish. Further, Plaintiff asserts that unconscionability exists based upon Defendant's not providing the entire purported agreement that contains an unduly harsh class action waiver.

Arbitration is a matter of contract, and a party cannot be required to arbitrate a dispute unless agreed. (*Ajida Technologies, Inc. v. Roos Instruments, Inc.* (2001) 87 Cal.App.4th 534, 541; *Lopez v. Charles Schwab & Co., Inc.* (2004) 118 Cal.App.4th 1224, 1233.) An agreement's signature can be shown by having a judge compare a genuine signature to that on an agreement, or by a declaration of a custodian of records. (*Gamboa v. Ne. Cmty. Clinic* (2021) 72 Cal.App.5th 158, 170.)

The absence of "authentic informed choice," due to the lack of straightforward, unbiased explanations of an agreement, may constitute procedural unconscionability. (*Gentry v. Superior Court* (2007) 42 Cal.4th 443, 470 [where employer indicated preference to arbitrate, it was likely that "nonexecutive", lower echelon employees felt some pressure not to opt out of the agreement], overruling on other grounds recognized by *Marengo v. DirecTV LLC* (2015) 233 Cal.App.4th 1409, 1421.)

Cases that have held that the failure to provide a copy of incorporated documents support finding procedural unconscionability have involved an unconscionability claim that somehow depended upon the incorporated arbitration rules. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246.)

Here, Plaintiff filed valid evidentiary objections to the Declaration of Lee Previant and the signed arbitration agreement and translation, primarily based upon the declarant's failure to lay foundation to show personal knowledge of the agreement.

And Plaintiff filed a declaration denying obtaining or signing the arbitration agreement, and explaining his inability to read English or Spanish.

Defendant has filed no Reply in rebuttal of the issue of failure to show assent to the arbitration

agreement.

The Court need not reach the issue of unconscionability, since the lack of assent requires denying the request to compel arbitration. However, the Federal Arbitration Act (FAA) preempts California law holding that class action waivers are unenforceable, making them enforceable. (*Vela v. Harbor Rail Services of California, Inc.* (2026) 120 Cal.App.5th 353, 367; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 123 [class arbitration waivers are not unconscionable].)

IV.

CONCLUSION

Therefore, the Court denies the Motion, for reasons set forth above.